

17. S-PR-0013961 In Re the Hammack Liv. Trust

It is recommended the petition to determine trust property be denied.

Transfer of real property to a trust or creation of a trust for real property requires a writing. See Prob.C. § 15200(a)–(b); see also *Estate of Heggstad* (1993) 16 Cal.App.4th 943; *Ukkestad v. RBS Asset Finance Inc.* (2015) 235 Cal.App.4th 156. Petitioner offers no writing by decedent settlor establishing that his interest in the subject property was transferred to any trust. Because the property is not described in the trust or either trust restatement, the requested relief falls outside the reach of *Heggstad*.

Relief is not available under *Kucker v. Kucker* (2015) 92 Cal.App.4th 90 for at least two reasons. First, *Kucker* concerned transfer of personal property to a trust, not transfer of real property of a trust. *Id.* at 92 & 95. Second, *Kucker's* discussion of the effect of general assignment language without a description of specified real property is both merely dicta (see *Ukkestad v. RBS Asset Finance Inc.* (2015) 235 Cal.App.4th 156, 163 n. 7) and is contrary to petitioner's argument: under the *Kucker* dicta, real property is *not* effectively transferred to a trust unless the assignment language "describe[s] the real property so that it could be identified." *Id.* at 95. The general assignment language here does not describe any real property in a manner in which it can be identified.

Nor is relief available under *Ukkestad*, *supra*. In *Ukkestad*, the court determined that an all-real-property funding clause can satisfy the statute of frauds to create a trust in real property not identified in the writing but which can be defined by extrinsic evidence such as real property records. *Ukkestad, supra*, 235 Cal.App.4th at 162–163. However, the trust provision in *Ukkestad* "assigned the ownership of all of [settlor's] real property to the trustees of the Trust *effective immediately*." *Id.* at 159 (emphasis added). *Ukkestad* did not involve after-acquired property and so does not hold that property acquired contrary to the trust after execution of the purported funding instrument is trust property. Petitioner does not allege when decedent settlor acquired his interest in the subject property, but concedes settlor did not own the real property when the trust—including the general assignment document—was executed and / or restated.

Relief also cannot be granted under the pour-over will. "In the absence of any transfer to [a] trust prior to [decedent's] death," assets become part of the decedent's estate despite will language expressing decedent's desire that assets be held in trust. *Placencia v. Strazicich* (2019) 42 Cal.App.5th 730, 735 & 743–744 (emphasis added). "It [is] error for the court to award [such property] directly to [a] trust in the absence of a probate proceeding." *Id.*, citing *Estate of Hart* (1957) 151 Cal.App.2d 271, 280–281. See also Prob.C. § 7001. "[A] probate court ha[s] no power to consider the legality of a will until it [is] regularly brought before it by a petition for its probate." *Estate of Burnett* (1935) 6 Cal.App.2d 116, 123.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.